

IN THE MAGISTRATE COURT OF FULTON COUNTY
STATE OF GEORGIA

Example Properties LLC,
Plaintiff,

Civil Action No.
26-12345

v.

Alex Smith,
Defendant.

**DEFENDANT'S MOTION TO DISMISS DISPOSSESSORY PROCEEDING FOR
IMPROPER SERVICE**

COMES NOW Defendant, Alex Smith, appearing pro se, and respectfully moves this Court to dismiss the above-captioned dispossession proceeding, or alternatively quash the purported service, because Defendant was not properly served as required by Georgia law.

In support of this Motion, Defendant states as follows:

1. Plaintiff filed a dispossession proceeding against Defendant concerning the premises located at: 123 Example Street, Atlanta, GA 30303
2. Defendant was not properly served with the dispossession affidavit and/or dispossession warrant.
3. Specifically, the circumstances surrounding the attempted service were as follows:
I found papers at the property on September 12, 2026. No papers were handed to me.
4. Defendant did not receive service in a manner authorized by Georgia law.
5. Defendant did not receive actual notice through a legally sufficient method of service that would provide the Court with personal jurisdiction over Defendant in this dispossession proceeding.
6. Defendant therefore objects to the sufficiency of service and requests that the Court determine that service was defective.
7. Because service was not properly perfected, Defendant respectfully submits that the dispossession proceeding should not proceed against Defendant based upon the defective service.
8. Defendant raises improper service as a defense and expressly preserves the right to contest the dispossession proceeding, possession of the premises, any alleged amount owed, and all other defenses and claims available under Georgia law.